

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

218 CRM-M-63096-2024
Date of Decision: 07.01.2025

Ranbir Singh ...Petitioner
Versus
State of Punjab ...Respondent

CORAM: HON'BLE MR. JUSTICE ANOOP CHITKARA
Present: Mr. Amit Arora, Advocate for the petitioner.
Mr. Sukhdev Singh, A.A.G, Punjab.

ANOOP CHITKARA, J.

FIR No.	Dated	Police Station	Sections
188	24.10.2024	Sadar Tarn Taran, District Tarn Taran	109, 118(2), 118(1), 115(2), 125, 351(2), 191(3), 190, 324(4) of BNS, 2023 and 25, 27 of the Arms Act

1. The petitioner apprehending arrest in the FIR captioned above has come up before this Court under Section 482 of Bharatiya Nagarik Suraksha Sanhita, 2023, [BNSS], seeking anticipatory bail.
2. Per paragraph 25 of the bail application and the short reply dated 06.01.2025, the accused has the following criminal antecedents:

Sr. No.	DDR No.	Date	Offenses	Police Station
1.	24	14.07.2016	323, 354, 148, 149 IPC	Sadar Tarn Taran

in

FIR No.	Date	Offenses	Police Station
116	10.07.2016	326/34 IPC	Sadar Tarn Taran

3. The facts and allegations are being taken from the reply filed by the State, which reads as follows:
- “5. That the true facts leading to this case are that the complainant namely Navkawarpal Singh son of Jasbir Singh got recorded his statement before the investigating officer to the effect that on 23.10.2024, at about 7:30 P.M., the complainant was strolling when he noticed Harpal Singh demolishing the khal (water channel) with his tractor Farmtrac 60 and the*



complainant objected to the same and Harpal Singh flew into rage. He left leaving his tractor behind and the complainant stood on the passage leading to his home. His uncle (mama) Shinder Singh was also present. After about 15/20 minutes, Innova car turned up which belonged to Amrik Singh. Harpal Singh armed with sword, Amrik Singh armed with .315 bore rifle, Akashdeep Singh armed with dater, Kanwaljit Singh armed with pistol, Ranbir Singh i.e. the petitioner armed with dater, Gurpreet Singh armed with sword alighted from the car. Ajmer Singh armed with dasta along with one more person wielding a dang also turned up on a motorcycle. Harpal Singh raised a lalkara and gave a sword blow which struck the wrist of the left arm of the complainant. Akashdeep Singh gave dater blow on the left side of the head of the complainant and he slumped on the ground. Gurpreet Singh gave sword blow which hit upon the eyebrow of the left eye of the complainant. Akashdeep Singh gave another dater blow on the thumb of the right foot of the complainant. Ajmer Singh gave dasta blows on the shoulder of the complainant. Amrik Singh and Kanwaljit Singh started firing with their respective firearms. Shinder Singh, uncle of complainant, intervened upon which the petitioner Ranbir Singh gave a dater blow upon Shinder Singh which struck the little finger of the right hand of Shinder Singh and sliced the same. Ajmer Singh gave a dasta blow upon the right arm of the complainant. The unknown person gave a dang blow upon the thumb of the right hand of Shinder Singh and the complainant raised an alarm, then the assailants fled away from the spot along with their respective weapons and in this regard, the present case FIR No.188 dated 24.10.2024, under section 109/118(2)/118(1)/115(2)/125/351(2)/191(3)/190/324(4) of BNS & 25/27 of the Arms Act has been registered at police station Sadar Tarn Taran, District Tarn Taran against the petitioner namely Ranbir Singh as well as co-accused namely Harpal Singh Former Sarpanch Amrik Singh, Akashdeep Singh, Kanwaljit Singh, Gurpreet Singh, Ajmer Singh and one unknown person.”

4. The petitioner's counsel prays for bail by imposing any stringent conditions and contends that further pre-trial incarceration would cause an irreversible injustice to the petitioner and their family.
5. The State's counsel opposes bail and refers to the reply.
6. It would be appropriate to refer to the following portions of the reply, which read



as follows:

“ROLE OF THE PETITIONER:

10. That as far as the role of the petitioner is concerned, it is submitted that the petitioner was armed with deadly weapon i.e. Datar at the spot and he has given dater blow upon injured namely Shinder Singh which hit on the little finger of the right hand of Shinder Singh and due to which the little finger of Shinder Singh was cut and the injury attributed to the petitioner was also declared as grievous in nature by the board of doctors and the allegations against the petitioner are also supported with the medical record. As such, the petitioner has committed the serious offence and his custodial interrogation is utmost required in the present case in order to recover the weapon and further to bring the investigation of the present case to its logical conclusion and he is certainly not entitled for the concession of anticipatory bail.

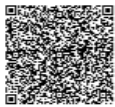
EVIDENCE AGAINST THE PETITIONER:

11. That as far the evidence against the petitioner is concerned, it is submitted that there are direct allegations against the petitioner and the allegations against the petitioner are also supported with the medical record. As such, there are specific allegations and injury attributed to the petitioner and the nature and severity of blow given to the injured Shinder Singh by the petitioner does not warrant that any kind of concession of anticipatory bail be granted to the petitioner.”

7. As per the medical record, the middle finger of Shinder Singh was almost amputated and the injury on the middle finger is specially attributed to petitioner-Ranbir Singh. The amputation of the finger shows the intent with the weapon which points out towards cruelty. Severing of a human part is not considered as serious act of assault and lenient view is taken then it would send a very negative message to the society at large and would also affect the sense of justice from the victim’s prospective. Thus, considering the heinous nature of offence, petitioner is not entitled to anticipatory bail.

8. [Cruelty] implies there is something inhuman and barbarous -something more than the mere extinguishment of life.¹ The offense is heinous, and the crime brutal. Cruelty is one of the factors in deciding on bail. A cruel person is more likely to create a lot of insecurity in society. Once the courts form a prima facie opinion that the accused acted with cruelty, then such an accused ordinarily should not be granted bail, and if the

¹ In re Kemmler, 136 U.S. at 436 [Refer: Matthew Lippman, Contemporary criminal law: concepts, cases, and controversies, University of Illinois at Chicago, 51, SAGE, California, USA, fourth edition, 2016].



courts deem it appropriate to grant, then it must be after specifying the reasons for such an indulgence. In the present case, an analysis of the allegations and evidence collected does not warrant the grant of bail to the accused.

9. A perusal of the bail petition and the documents attached prima facie points towards the petitioner’s involvement and does not make out a case for anticipatory bail. The impact of crime would also not justify anticipatory bail. Any further discussions will likely prejudice the petitioner; this court refrains from doing so.

10. Any observation made hereinabove is neither an expression of opinion on the case's merits nor shall the trial Court advert to these comments.

11. Petition dismissed. All pending applications, if any, are disposed of.

(ANOOP CHITKARA)
JUDGE

07.01.2025
Jyoti-II

Whether speaking/reasoned:	Yes
Whether reportable:	No.